

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

August 10, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Biocorr v VDM 2021-01195606	Motion for Leave to File Amended Cross-Complaint Continued to 08/17/2026
2	Buffalo Park v. Boyd 2025-01532614	Motion to File Cross Complaint The Court grants Defendant Warren Boyd’s Motion to file the proposed Cross-Complaint against Plaintiff Buffalo Park LLC. If the proposed cross-complaint is compulsory, leave <i>must</i> be granted so long as defendant is acting in good faith. (Code Civ. Proc. § 426.50; <i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civ. Proc. before Trial</i> (Rutter 2010) § 6:555.) If defendant's cause of action against plaintiff is related to the subject matter of the complaint, it must be raised by cross-complaint; failure to plead it will bar defendant from asserting it in any later lawsuit. (CCP § 426.30; <i>see AL Holding Co. v. O'Brien & Hicks, Inc.</i> (1999) 75 Cal.App.4th 1310, 1313-1314.) Generally, the court must grant leave to file a compulsory cross-complaint irrespective of whether the failure to timely file the cross-complaint was due to oversight, inadvertence, mistake, neglect, or another cause, so long as the party making the motion has not acted in bad faith or no substantial prejudice to the adverse party is shown. (<i>Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-100; <i>Foot's Transfer & Storage Co. v. Superior Court</i> (1980) 114 Cal.App.3d 897, 902–903.) In short, courts at best have only a “modicum of discretion” in denying leave to file a compulsory cross-complaint. (<i>Gherman v. Colburn</i> (1977) 72 Cal.App.3d 544, 559; <i>Sidney v. Superior Court</i> (1988) 198 Cal.App.3d 710, 718; <i>but compare Silver Organizations Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98 (rejecting view the court may exercise discretion in the denial of a motion to file a compulsory cross-complaint).)

		Here, the proposed Cross-Complaint has claims for 1) declaratory relief 2) accounting and 3) breach of contract against Plaintiff. It is a compulsory cross-complaint. Therefore, the Motion must be granted unless there is bad faith or prejudice. The Court finds neither. Thus, the Motion is granted. Defendant shall file and serve his Cross-Complaint within 15 days. CMC is continued until 10/26/26 at 9:00 a.m. Defendant shall serve notice of this Order.
3	Chang v. Windwood 2025-01528996	Demurrer to Answer Off Calendar
4	Tapia v. Country Villa 2022-01276368	Leave to File Second MSJ / Reconsideration The court will hear argument Motions to Compel / Sanctions / Terminating Sanctions <u>Request for Order Compelling Responses</u> A propounding party may move for an order compelling responses to interrogatories at any time “[i]f a party to whom interrogatories are directed fails to serve a timely response.” (Code Civ. Proc., § 2030.290, subd. (b).) By failing to serve timely responses, the responding party “any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product.” (Code Civ. Proc., § 2030.290, subd. (a).) The “meet and confer” requirement does not apply to a motion to compel responses for failure to serve timely response. (See Code Civ. Proc., § 2030.290; Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:1160 [“An ‘attempt to resolve informally’ is not required where a party has <i>failed</i> to respond within the statutory time limit”].) “In addition to the number of interrogatories permitted by Sections 2030.030 and 2030.040, a party may propound a supplemental interrogatory to elicit any later acquired information bearing on all

answers previously made by any party in response to interrogatories.” (Code Civ. Proc. § 2030.070, subd. (a).) Once an initial trial date has been set, the supplemental interrogatory may be propounded, once, before the discovery cut-off date. (Code Civ. Proc. § 2030.070, subd. (b).) Responses are due within 30 days after service of the supplemental interrogatory. (Code Civ. Proc., § 2030.260, subd. (a).)

Likewise, “[i]n addition to the demands for inspection, copying, testing, or sampling permitted by this chapter, a party may propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody, or control of the party on whom the demand is made.” (Code Civ. Proc. § 2031.050, subd. (a).) Once an initial trial date has been set, this demand may be made, once, before the discovery cut-off date. (Code Civ. Proc. § 2031.050, subd. (b).) Responses are due within 30 days after service of the demand. (Code Civ. Proc., § 2031.260, subd. (a).)

Here, Defendant has proffered evidence showing it served Plaintiff with second and third sets of special interrogatories, and with a supplemental interrogatory and request for production of documents. Plaintiff failed to serve timely responses, thereby waiving any objections. Plaintiff has not opposed the motions, or shown that he served responses prior to the hearing. Accordingly, the motions for order compelling responses to the second and third sets of special interrogatories, and supplemental interrogatory and request for production of documents, are granted. Plaintiff is ordered to serve verified responses, without objections, within **15 days** of the notice of ruling.

In connection with these motions, Defendant is awarded a total of \$1,150.80 in reasonable attorneys’ fees and costs. (Code Civ. Proc., §§ 2023.010, 2023.030.)

Request for Terminating Sanctions

With respect to the request for a terminating sanction, Defendant argues in its motions, that:

... Plaintiff has consistently, willfully, and repeatedly refused to comply with his discovery obligations. Plaintiff has evidenced a long history of discovery abuse and willful violations of his obligations. There is no indication that a less severe sanction will be sufficient to ensure Plaintiff’s compliance with discovery rules, and Defendant requests an order dismissing the action, with prejudice, as against Defendant. Due to Plaintiff’s refusal to

		participate in discovery, the defense has been, and continues to be, severely prejudiced. “Trial courts are to take an incremental approach to discovery sanctions, <i>starting with monetary sanctions</i> and leading up to the ultimate sanction of termination. Sanctions must be proportionate to the harm caused by the misconduct and should not provide a ‘windfall’ to the party requesting sanctions.” (<i>Atlas v. Davidyan</i> (2025) 113 Cal.App.5th 1086, 1095 [emphasis added] [citations omitted].) “Once a party or witness has been <i>ordered</i> to attend a deposition, or to answer discovery, or to produce documents, more severe sanctions are available for continued refusal to make discovery.” (Cal. Prac. Guide Civ. Pro. Before Trial at ¶ 8:2145 [emphasis in original].) In its moving papers, Defendant fails to point out which discovery orders Plaintiff has violated. Based on the record, the Court sees no justification for resorting to the ultimate sanction of termination at this juncture. Defendant shall give notice of the ruling.
5	Hoffman v. Ear and Ear 2024-01411742	Motion to Compel Further Responses / Sanctions Defendant Kimberly Ear’s unopposed motion to compel Plaintiff Hartley Hoffman’s further responses to her special interrogatories is granted. A party may move to compel further responses to interrogatories on the grounds that the answer is evasive or incomplete, an exercise of the option to produce documents under CCP § 2030.230 is unwarranted or the required specification of those documents is inadequate, and/or an objection to an interrogatory is without merit or too general. (Code Civ. Proc. § 2030.300(a).) If a timely motion to compel has been filed, the burden is on the responding party to justify any objection or failure to fully answer the interrogatories. (<i>Fairmont Ins. Co. v. Superior Court</i> (2000) 22 Cal.4th 245, 255.) Here, Plaintiff only served objections to Defendant’s interrogatories.

		Defendant's special interrogatories at issue are straightforward and relate directly to Plaintiff's contentions in her complaint. It is Plaintiff's burden to justify her objections, and she has not done so. No opposition was filed. Therefore, the motion is granted. Plaintiff is ordered to serve further responses to Defendant's special interrogatories numbered 46 – 79 within 20 days of service of the notice of this ruling. Defendant is awarded \$1,350.00 in monetary sanctions against Plaintiff and her counsel to be paid within 30 days. (Code Civ. Proc., § 2030.300(d).)
6	Keller v. E & G Aesthetic Institute, Inc. 2025-01534928	Defendants E&G Aesthetic Institute, Inc. and Mariaelena Gavilanes' motion for order compelling plaintiff Christina Keller to arbitrate her claims in this action is granted. [ROA #15.] These proceedings will be stayed pending completion of arbitration. Facts This is essentially an action for medical malpractice. Plaintiff asserts claims on her own behalf and as successor in interest to her decedent. The complaint contains two causes of action: (1) wrongful death based on medical malpractice (CCP 377.60) and (2) medical malpractice through survival action (CCP 377.20). [Complaint (ROA #2).] Prior to obtaining medical care from Defendants, Plaintiff's decedent signed an arbitration agreement with E&G Aesthetic Institute, Inc. [Crespo Decl. (ROA #15), ¶ 3 and Ex. 2; Gavilanes Decl. (ROA #15), ¶¶ 5-8.] In pertinent part, the arbitration agreement provides: ARTICLE 1: It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contractual agreement were unnecessary or unauthorized or were improperly, negligently, or incompetently rendered, and will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to court process except as California law provides for judicial review of arbitration proceedings. Both parties to this contractual agreement, by entering into it, are giving up their constitutional right to have such a dispute decided in a court of law before a jury, and instead are accepting the use of arbitration.

ARTICLE 2: I understand and voluntarily agree that this Arbitration Agreement binds me and anyone else who may have a claim arising out of or related to all treatment or services provided by the physician, Dr. Pavlo Isak MD or practice providers including physician assistant Mariaelena Gavilanes, PA-C of E&G Aesthetic Institute, Inc. practicing as “E&G Aesthetic Institute” including any spouse or heirs of the patient and any children, whether born or unborn at the time of the occurrence giving rise to any claim. This includes, but is not limited to, all claims for personal injury, actions to collect debt, monetary damages exceeding the jurisdictional limit of the small claims court, including, without limitation, suits for loss of consortium, wrongful death, emotional distress, or punitive damages.
....

ARTICLE 3: I understand and agree that this Patient-Physician and Patient-Practice Arbitration Agreement binds me, my heirs, assigns or personal representatives

[Crespo Dec., Ex. 2. (Highlighting added.)]

In the paragraph immediately above Plaintiff’s decedent’s signature of the Arbitration Agreement, the document includes: “NOTICE: BY SIGNING THIS CONTRACTUAL AGREEMENT YOU ARE AGREEING TO HAVE ANY ISSUE OF MEDICAL MALPRACTICE DECIDED BY NEUTRAL ARBITRATION AND YOU ARE GIVING UP YOUR RIGHT TO A JURY OR COURT TRIAL. SEE ARTICLE 1 OF THIS AGREEMENT. “

[*Id.*]

Legal Standard

Code Civ. Proc. § 1281.2 provides, *inter alia*:

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

- (a) The right to compel arbitration has been waived by the petitioner; or
- (b) Grounds exist for rescission of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...”

(Emphasis supplied.)

CRC 3.1330 requires that a petition to compel arbitration or to stay proceedings pursuant to Code Civ. Proc. §1281.2 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be attached to the petition and incorporated by reference.

“[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (*see* § 1281.2, subs. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal.App.4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.

While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Id.* at 739; *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th at 1170; *Greenspan v. LADT, LLC.* (2010) 185 Cal.App.4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal.App.4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 990 (“The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration”).

Discussion

Was There an Agreement to Arbitrate?

Defendants have established, and Plaintiff does not dispute, that Plaintiff's decedent signed an arbitration agreement that encompasses the malpractice claims. [Crespo Decl., Ex 2.]

Rather, Plaintiff contends that *she* did not sign that arbitration agreement and is not bound by its terms as to her own statutory claim for wrongful death. The law is to the contrary.

In *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, the California Supreme Court addressed whether arbitration agreements between health care providers and patients bind spouses and children of the patients who file wrongful death actions. *Id.* at 844-845. The Court held that if a patient agreed to arbitrate medical malpractice disputes in compliance with the arbitration provision of the Medical Injury Compensation Reform Act (MICRA) (codified as Code Civ. Proc., § 1295), the patient-provider agreement may bind the patient's heirs in a wrongful death action, even if the heirs themselves never agreed to arbitration. *Ruiz*, 50 Cal.4th at 849–850.

The Supreme Court found that Code Civ. Proc. § 377.60 “creates a new cause of action in favor of the heirs as beneficiaries, based upon their own independent pecuniary injury suffered by loss of a relative, and distinct from any the deceased might have maintained had he survived. [Citations.]” *Id.* at 844. But, the Court went on to explain, “wrongful death plaintiffs may be bound by agreements entered into by decedent that limit the scope of the wrongful death action. Thus, for example, although an individual involved in a dangerous activity cannot by signing a release extinguish his heirs' wrongful death claim, the heirs will be bound by the decedent's agreement to waive a defendant's negligence and assume all risk.” *Id.* at 851-852.

The agreement in *Ruiz* provided that it applied to parties whose claims arose out of or related to the treatment and services provided including the spouse, heirs, and children. *Id.* at 841-842. The Court held it could be enforced against the decedent's children: “a contrary holding would defeat Podolsky's reasonable contractual expectations.” *Id.* at 854.

In a more recent opinion, the California Supreme Court affirmed its conclusions in *Ruiz*. *Holland v. Silverscreen Healthcare, Inc.* (2025) 18 Cal.5th 364, 374-375.

In short, by its terms and under the law, the arbitration agreement is binding on Plaintiff.

Plaintiff's citation to *Daniels v. Sunrise Senior Living, Inc.* (2013) 212 Cal.App.4th 674 is not helpful as that was not a *medical malpractice* wrongful death case.

Plaintiff also contends that the arbitration agreement does not comply with Code of Civil Procedure section 1295(b). According to Plaintiff, as presented by Defendants, the required warning above the signature line is not in bold type or red type. Plaintiff makes no claim, however, that her decedent did not read or see the warning prior to signing or was unaware that he was signing an arbitration agreement and giving up his right to a jury or court trial.

This leaves Plaintiff's final argument that the arbitration agreement is unconscionable.

Is the Arbitration Agreement Unenforceable for Unconscionability?

Unconscionability is one ground on which a court may refuse to enforce a contract, including an arbitration agreement. Civ. Code §1670.5. Whether a provision is unconscionable is a question of law. Civ. Code §1670.5(a); *Flores v. Transamerica* (2001) 93 Cal.App.4th 846, 851.

The core concern of unconscionability doctrine is the absence of meaningful choice on the part of one of the parties together with contract terms which are unreasonably favorable to the other party. *Sonic Calabasas A, Inc. v. Moreno*, (2013) 57 Cal.4th 1109, 1145.

Unconscionability has a procedural and a substantive element: the procedural element focuses on the existence of oppression or surprise and the substantive element focuses on overly harsh or one-sided results. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.

To be unenforceable, a contract must be both procedurally and substantively unconscionable, but the elements need not be present in the same degree. The analysis employs a sliding scale: "...the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa." *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114; *Mercuro v. Superior Court* (2002) 96 Cal.App.4th 167, 174-175.

Procedural Unconscionability

Procedural unconscionability concerns the manner in which the contract was negotiated and the parties' circumstances at that time. It

focuses on the factors of oppression or surprise. *Kinney v. United HealthCare Services, Inc.* (1999) 70 Cal.App.4th 1322, 1329.

Procedural unconscionability is often found in contracts of adhesion – i.e. standardized contracts which, imposed and drafted by the party of superior bargaining strength, relegate to the subscribing party only the opportunity to adhere to the contract or to reject it. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113. “When the weaker party is presented the clause and told to take it or leave it without the opportunity for meaningful negotiation, oppress, and therefore procedural unconscionability, are present.” *Szetela v. Discover Bank* (2002) 97 Cal.App.4th 107, 114. *See also Lhotka v. Geographic Expeditions, Inc.* (2010) 181 Cal.App.4th 816, 821-824 (finding take it or leave it contract for recreational activity procedurally unconscionable even though activity not a “necessity”). A “meaningful opportunity to negotiate or reject the terms of a contract requires, at a minimum, that a party have reasonable notice of the opportunity to negotiate or reject the terms of the contract and an actual, meaningful, and reasonable choice to exercise that discretion. *Circuit City Stores, Inc. v. Mantor* (9th Cir. 2003) 335 F.3d 1101, 1106.

“Oppression arises from an inequality of bargaining power which results in no real negotiation and an absence of meaningful choice.” *Crippen v. Central Valley RV Outlet* (2004) 124 Cal.App.4th 1159, 1165 (citation omitted). “When the weaker party is presented the clause and told to ‘take it or leave it’ without the opportunity for meaningful negotiation, oppression, and therefore procedural unconscionability, are present.” *Szetela v. Discover Bank* (2002) 97 Cal.App.4th 1094, 1100 (citation omitted).

Surprise usually involves supposedly agreed-upon terms buried in complex documentation. *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal. 4th 83, 114.

Here, Plaintiff asserts that the agreement is adhesive because it is a form agreement and that Defendants have not established that she (or her decedent) had sufficient time to review it or the rules cited in it.

But Plaintiff has presented no evidence that her decedent could not have negotiated the terms of the agreement. And it is her burden of proof to establish surprise or oppression – no Defendants’ to negate it. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972 (“a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense”); *Ericksen, Arbuthnot, McCarthy, Kearney & Walsh, Inc. v. 100 Oak*

Street (1983) 35 Cal.3d 312, 320 (“any doubts concerning the scope of arbitrable issues should be resolved in favor of arbitration, whether the problem at hand is the construction of the contract language itself or an allegation of waiver, delay, or a like defense to arbitrability”).

In contrast, Defendants have presented a two page document, that was part of a larger package of 19 pages, and evidence that Defendant Gavilanes reviewed the documents with Plaintiff’s decedent and was available to answer questions. [Gavilanes Decl., ¶¶ 5-6.]

Plaintiff has not made a showing of procedural unconscionability.

Substantive Unconscionability

[S]ubstantive unconscionability focuses on the one-sidedness of the contract terms. In the context of an arbitration agreement, the agreement is unconscionable unless there is a “ ‘modicum of bilaterality’ ” in the arbitration remedy. [Citation.] “Although parties are free to contract for asymmetrical remedies and arbitration clauses of varying scope, ... the doctrine of unconscionability limits the extent to which a stronger party may, through a contract of adhesion, impose the arbitration forum on the weaker party without accepting that forum for itself.” [Citation.] *Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 854.

To be substantively unconscionable, contract terms must be “unduly harsh, oppressive, or one-sided.” *Sanchez v. Carmax Auto Superstores California, LLC* (2014) 224 Cal.App.4th 398, 403.

Plaintiff argues that the arbitration agreement signed by her decedent is unconscionable as to her because it would strip her of her independent statutory right to a wrongful death action without her consent.

First, it does not strip the Plaintiff of the action, but it does mandate an arbitral forum rather than a court.

Second, this is the result mandated by the California Supreme *Ruiz* and confirmed by it in *Holland*. If Plaintiff’s argument were sufficient to avoid enforcement of an arbitration agreement, *Ruiz* would be meaningless. That is a decision this court cannot make.

Accordingly, the motion to compel arbitration is granted, the case is stayed. ADR Review is set on March 1, 2027 at 9:00 a.m.

Defendant to give notice.

7	Khatibi v. The Illumination Foundation 2024-01372249	Motion for Summary Judgment and/or Adjudication Defendant Paul Leon’s unopposed motion for summary judgment as to Plaintiff Dr. Nikan Khatibi’s Complaint is granted. “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; 580 <i>Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see <i>Scheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information].) Plaintiff states two causes of action in his Complaint against Defendant Leon, for negligent misrepresentation and intentional misrepresentation. The elements of negligent misrepresentation are: (1) the misrepresentation of a past or existing material fact; (2) without reasonable ground for believing it to be true; (3) with intent to induce
---	--	---

another's reliance on the fact misrepresented; (4) justifiable reliance on the misrepresentation; and (5) resulting damage. (*Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.)

The elements of fraud/intentional misrepresentation are "(a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638.)

In moving for summary judgment, Defendant submits evidence including excerpts from Plaintiff's deposition transcript, Plaintiff's responses to written discovery, the Mesa Property Purchase Agreement, text messages between the parties, and a declaration from Defendant Paul Leon. (ROA 238, Defendant's Notice of Lodging.)

The alleged misrepresentations consist of (1) a text message from Defendant regarding his conversation with Jack about opening the business while ½ was still under construction, (2) an assurance that Defendants "were developing a post-acquisition plan for continued revenue generation from the Mesa Project" in response to Plaintiff's request for the lease terms in writing, and (3) an agreement "that payments would be based on Orange County's payment rate standards." (UMF 20, 21; Ex. J, Plaintiff's responses to Defendant Paul Leon's Special Interrogatories, Set One, No. (1); and (2).)

First, the statements that Defendant made that Plaintiff contends are misrepresentations are not actionable misrepresentations.

"The law is well established that actionable misrepresentations must pertain to past or existing material facts. Statements or predictions regarding future events are deemed to be mere opinions which are not actionable." (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469.) Furthermore, statements of opinion are not actionable under theories of fraud. (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 835.)

The evidence shows only that Defendant stated that Jack agreed they could open half the business while under construction, which is a future event/statement of opinion. Defendant's assurances to Plaintiff that they were developing a plan for revenue generation and statements regarding lease payments are too vague to qualify as misrepresentations. (See *Conrad v. Bank of America* (1996) 45 Cal.App.4th 133, 156, (court concluded that a borrower's vague

		testimony of lender’s statement “[n]o problem” concerning future loan applications, and that lender “agreed to process the loan application and said he would comply” was insufficient to establish false promise to make loan).) Second, Defendant’s evidence establishes that any reliance by Plaintiff on Defendant’s statements was not reasonable. Plaintiff is a well-educated individual with business experience, who previously purchased property and entered into a written lease, similar to the subject Mesa Property. (UMF 1-7, 10, 12.) It is not reasonable for Plaintiff to rely on the messages from Defendant Leon that he identifies in his responses to written discovery, which are vague and speculative, as a reason to purchase the Mesa Property without a guarantee of a Lease. Moreover, Defendant did not have authority to bind The Illumination Foundation as he had resigned from the board. (UMF 13-19) Furthermore, Defendant submits evidence that Plaintiff was aware at the time he purchased the Mesa Property that any future lease agreement for the Mesa Property would be contingent on Illumination Foundation receiving funding to operate the property, which had not yet occurred. (UMF 13, 25-25.) Defendant meets its burden as the moving party to show that multiple elements of Plaintiff’s two misrepresentation causes of action cannot be established. Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at p. 850.) Plaintiff did not oppose this motion, and thus fails to meet his burden to establish a triable issue of material fact. Defendant shall give notice.
8	Lopez v. Trans-Pak Inc. 2024-01437506	Motion for Leave to File Cross Complaint Defendant Trans Pak, Inc.’s unopposed motion for leave to file its proposed cross-complaint against BaronHR and Luis Perez is granted. [ROA #86.] Defendant is to file its proposed cross-complaint no later than August 17, 2026.

Legal Standard

A party shall file a cross-complaint against any of the parties who filed the complaint or cross-complaint against him or her before or at the same time as the answer to the complaint or cross-complaint. Code Civ. Proc. § 428.50(a).

Any other cross-complaint may be filed at any time before the court has set the first trial date. Code Civ. Proc. § 428.50(b); *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:553.

A party shall obtain leave of court to file any cross-complaint except one filed within the time specified in subdivision (a) or (b). Code Civ. Proc. § 428.50(c). There is a liberal policy regarding the filing of cross-complaints. *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:557. If the proposed cross-complaint is permissive, leave of court may be granted “in the interests of justice” at any time during the course of the action. Code Civ. Proc. § 428.50(c). There is a liberal policy regarding the filing of cross-complaints. *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:557.

On the other hand, if the proposed cross-complaint is compulsory, leave *must* be granted so long as defendant is acting in good faith. Code Civ. Proc. § 426.50; *Weil & Brown*, Cal. Prac. Guide, *Civ. Proc. before Trial* (Rutter 2010) § 6:555.

A cross-complaint can only be compulsory if it is against the plaintiff or another defendant already asserting cross claims against the party seeking to file a cross-complaint. Code Civ. Proc. §§ 426.10, 426.30(a).

A complaint is compulsory if any of its causes of action is related to the causes of action in the complaint. Code Civ. Proc. § 426.30(a). A related cause of action “means a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint.” Code Civ. Proc. § 426.10(c).

A liberal construction is given to the application of the compulsory cross-complaint statute. *Align Technology, Inc. v. Bao Tran* (2009) 179 Cal.App.4th 949, 967. “The test requires not an absolute identity of factual backgrounds for the two claims, but only a logical relationship between them”. The key question is “are any factual or legal issues relevant to both claims?” The goal is to avoid duplication of time and effort that comes from separate suits on the same events.

		<i>Currie Medical Specialties, Inc. v. Bowen</i> (1982) 136 Cal.App.3d 774, 777. In fact, cross-complaints for equitable indemnity are virtually always transactionally related to the complaint that has been filed in the main action. <i>Time for Living Inc. v. Guy Hatfield Homes</i> (1991) 230 Cal.App.3d 30, 38-39. This is because “[a]n indemnity claim effectively seeks to apportion among the parties to the indemnity action the precise liability claimed by the plaintiff in the main action; therefore the indemnity claim of necessity arises out of the same occurrences or series of occurrences as asserted by the plaintiff.” <i>Id.</i> at 39. Discussion Defendant’s proposed cross-complaint includes indemnity causes of action. Further, in the absence of opposition there is no claim of prejudice and no reason not to follow the general rule of liberal amendment. Accordingly, Defendant’s motion for leave to file its proposed cross-complaint is granted. The court will set a Case Management Conference on 9/14/26 at 1:30 p.m. concurrent with future discovery motions previously calendared. Trans Pak to give notice.
9	Krishna Menon v. Saddleback Memorial 2024-01379144	Motion for Summary Judgment <u>Evidentiary Objections</u> Plaintiffs’ evidentiary objections, nos. 1 through 4, are overruled. (See ROA 192.) The Court declines to rule on objections, nos. 5 and 6, because they are not material to the disposition of the motion. (Code Civ. Proc., § 437c, subd. (q).) <u>Summary Judgment Standard</u> “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact. . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her

initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the material allegations in the plaintiff's complaint. (*Huntsman-West Foundation v. Smith* (2024) 104 Cal.App.5th 1117, 1132.) "Thus, a 'defendant moving for summary judgment need address only the issues raised by the complaint; the plaintiff cannot bring up new, unpleaded issues in his or her opposing papers.' " (*Id.* at p. 1133 [citations omitted]; *Alameda Health System v. Alameda County Employees' Retirement Assn.* (2024) 100 Cal.App.5th 1159, 1174 ["The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action"].)

Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.) To meet this burden, the plaintiff must present substantial and admissible evidence creating a triable issue. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) Theoretical, imaginative, or speculative submissions are insufficient to stave off summary judgment. (*Doe v. Salesian Society* (2008) 159 Cal.App.4th 474, 481; *Bushling v. Fremont Med. Center* (2004) 117 Cal.App.4th 493, 510.)

Medical Negligence Claims

"The elements of a cause of action for medical malpractice are: (1) a duty to use such skill, prudence, and diligence as other members of the profession commonly possess and exercise; (2) a breach of the duty; (3) a proximate causal connection between the negligent conduct and the injury; and (4) resulting loss or damage." (*San Antonio Regional Hospital v. Superior Court* (2024) 102 Cal.App.5th 346, 350, citing *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.) "The first element, standard of care, is the key issue in a malpractice action and can only be proved by expert testimony, unless the circumstances are such that the required conduct is within the layperson's common knowledge." (*Ibid.*, citing *Lattimore v. Dickey* (2015) 239 Cal.App.4th 959, 968.) "Proving the third element, causation, also requires " 'competent expert testimony.' " (*Ibid.*, *Miranda v. Bomel Construction Co., Inc.* (2010) 187 Cal.App.4th 1326, 1336.)

"An expert declaration is admissible to support or defeat summary judgment if the expert's testimony would be admissible at trial in accordance with Evidence Code section 720." (*Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 761.) Per Evidence Code section 720, "[a] person is qualified to testify as an expert if he has special

knowledge, skill, experience, training, or education sufficient to qualify him as an expert on the subject to which his testimony relates.” (Evid. Code, § 720, subd. (a).) The expert declaration must disclose the matters relied on in forming its opinion. (See *Kelley v. Trunk* (1998) 66 Cal.App.4th 519, 524.) The matter relied on must, itself, be properly authenticated and placed before the court. (*Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, 743; accord *Shugart v. Regents of University of California* (2011) 199 Cal.App.4th 499, 505.)

Where, as here, a plaintiff alleges a corporate defendant acted “by and through its agents and employees” (Compl. at p. 4, ¶ GN-1), the corporate defendant’s vicarious liability is “wholly dependent upon or derived from the liability of the employee.” (*Lathrop v. HealthCare Partners Medical Group* (2004) 114 Cal.App.4th 1412, 1423.)

In their complaint, Plaintiffs Parvathi Devi Geetha Devi and Shreejith Menon, individually, and as the guardian ad litem of Krishna Menon (“Minor,” collectively, “Plaintiffs”) allege Saddleback Memorial, “by and through its agents and employees..., are responsible for the negligent acts and omissions of its agents and employees under the doctrines of agency and respondeat superior. Their negligent acts and omissions occurred during the labor and delivery and post delivery care of minor plaintiff, Krishna Menon, which resulted in him sustaining an otherwise avoidable severe and permanent brain injury and additional physical injuries that currently require daily dialysis treatments and a feeding tube one year post-birth.” (Compl. at p. 4, ¶ GN-1.) With respect to Devi’s claims, Plaintiff allege Saddleback Memorial, “by and through its agents and employees..., are responsible for the negligent acts of its agents and employees under the doctrines of agency and respondeat superior. Their negligent acts and omissions occurred during the prenatal care, labor and delivery and post delivery care of Ms. Geetha Devi which resulted in her developing severe pain and suffering.” (Compl. at p. 5, ¶ GN-1.) Devi also “suffered severe emotional distress due to her witnessing the traumatic birth of her son, the minor plaintiff, Krishna Menon, and Krishna’s subsequent neurological injury and its sequelae.” (Compl. at p. 6, ¶ GN-1) Under their fourth cause of action for negligent infliction of emotional distress, Devi and Menon allege they are “entitled to recover for this emotional distress” pursuant to *Thing v. La Chusa* (1989) 48 Cal. 3d 644.” (Compl. at p. 7, ¶ GN-1.)

In moving for summary judgment, Saddleback Memorial has provided a declaration from Joseph G. Ouzounian, M.D., MBA. (ROA 143.) Dr. Ouzounian attests he is a physician licensed to practice medicine in the State of California, and is board-certified by the American Board of Obstetrics and Gynecology. (Ouzounian Decl. at ¶¶ 3-4.) In

preparing his declaration, Dr. Ouzounian reviewed “various case materials regarding Plaintiff,” including “Plaintiffs’ Complaint (Exhibit B), Plaintiff, Parvathi Devi Geetha Devi, Medical Records from Saddleback Memorial Medical Center (Exhibit C), Minor Plaintiff, Krishna Menon’s Medical Records from Saddleback Memorial Medical Center (Exhibit D) and Minor Plaintiff, Krishna Menon’s Medical Records from Miller Children’s Hospital (Exhibit E).” (Ouzounian Decl. at ¶ 6.)

Dr. Ouzounian provides the following opinions:

- “that the staff at Saddleback Memorial Medical Center met the standard of care in the community with regard to the care and treatment provided to Plaintiff, Parvathi Devi Geetha Devi. Plaintiff, Parvathi Devi Geetha Devi was expeditious admitted, her and her fetus were appropriately monitored, the hospitalist M.D. was timely contacted”;
- “Upon learning that the placental ultrasound was suspicious for bleeding, the hospital staff assisted Dr. Penick and immediately transported Plaintiff to surgery for an emergency Cesarean section”;
- “the staff at Saddleback Memorial Medical Center did not cause or contribute to any delayed delivery”;
- “the staff at Saddleback Memorial Medical Center did not cause any injury that caused Krishna Menon’s admission to the NICU”; and,
- “the staff at Saddleback Memorial Medical Center did not cause any alleged diagnosis of mild hypoxic ischemic encephalopathy.” (Ouzounian Decl. at ¶¶ 9a.-9e.

In opposing the motion, Plaintiffs claim Saddleback Memorial has not met its initial burden, because it purportedly failed to address theories pleaded in Plaintiffs’ Complaint. Specifically, Plaintiffs contend Saddleback Memorial is “silent on Plaintiffs’ pleaded post-delivery and neonatal theory” because its expert did not offer an opinion “regarding (1) the adequacy of neonatal resuscitation and delivery-room care; (2) whether therapeutic hypothermia should have been initiated at Saddleback, and whether the neuroprotective window was met before transfer; or (3) the appropriateness of the inter-facility transport and the selection of the receiving hospital.” (ROA 194 [Opp’n at p. 6].)

Plaintiffs are correct that Dr. Ouzounian’s declaration did not specifically address these three issues. However, these three issues are also conspicuously absent from Plaintiffs’ complaint. Other than a

barebones reference to “post delivery care,” there are no *factual allegations* that put Saddleback Memorial on notice that Plaintiffs are claiming negligence in the “adequacy of neonatal resuscitation and delivery-room care,” “whether therapeutic hypothermia should have been initiated at Saddleback, and whether the neuroprotective window was met before transfer,” or “the appropriateness of the inter-facility transport and the selection of the receiving hospital.” As set forth, above, “summary judgment is defined by the *material allegations* in the pleadings.” Plaintiffs did not plead any factual allegations about these three issues with respect to Saddleback Memorial. The only facts alleged with respect to negligence in the post delivery care were pled against Dr. Brown and UC Regents. (See Compl. at p. 4.) Accordingly, Plaintiffs cannot avoid summary judgment by expanding the issues beyond the material allegations in the Complaint. (See *Huntsman-West Foundation v. Smith* (2024) 104 Cal.App.5th 1117, 1132 [trial court properly granted summary judgment on intentional tort claim where plaintiffs’ complaint failed to allege any acts constituting the tort; “As stated, there was no intentional tort identified in the pleadings”].)

Based on the foregoing, the Court finds Saddleback Memorial has met its initial burden on the medical negligence claims. Because Saddleback Memorial has met its burden on the medical negligence claims, it has also met its burden on the negligent infliction of emotional distress claim.

“Negligent infliction of emotional distress “ ‘is not an independent tort, but the tort of *negligence*,’ ” to which “ ‘traditional elements of duty, breach of duty, causation, and damages apply.’ ” (*Downey v. City of Riverside* (2024) 16 Cal.5th 539, 547, citation omitted.) In other words, a bystander’s claim for negligent infliction of emotional distress depends upon the existence of an act of negligence that caused injury to the victim. (*Thing v. La Chusa* (1989) 48 Cal.3d 644, 647 [“It is in that context that we consider the appropriate application of the concept of ‘duty’ in an area that has long divided this court—recognition of the right of persons, whose only injury is emotional distress, to recover damages when that distress is caused by knowledge of the injury to a third person *caused by the defendant’s negligence*”] [emphasis added].) Absent a triable issue of material fact on the medical negligence claims, Devi and Menon’s bystander theory under *Thing v. La Chusa*, which is based on witnessing a “negligent injury” to Minor, necessarily fails.

Request for Continuance

“If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts

essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just.” Alternatively, the motion “may also be made by ex parte motion at any time on or before the date the opposition response to the motion is due. (Code Civ. Proc., § 437c, subd. (h).)

“A declaration in support of a request for continuance under section 437c, subdivision (h) must show: “(1) the facts to be obtained are essential to opposing the motion; (2) there is reason to believe such facts may exist; and (3) the reasons why additional time is needed to obtain these facts. (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254.) The party requesting a continuance does not need to show that the evidence *does* exist, but it must show that it *may* exist. Further, the supporting affidavit or declaration “must detail the specific facts that would show the existence of controverting evidence.” (*Granadino v. Wells Fargo Bank, N.A.* (2015) 236 Cal.App.4th 411, 420.) If this showing is made, then the continuance is “virtually mandated.” (*Dee v. Vintage Petroleum, Inc.* (2003) 106 Cal.App.4th 30, 34, citation omitted.) “Continuance of a summary judgment hearing is not mandatory, however, when no affidavit is submitted or when the submitted affidavit fails to make the necessary showing under section 437c, subdivision (h).” (*Cooksey v. Alexakis* (2004) 123 Cal.App.4th 246, 254.)

Here, the Court finds Plaintiffs have not made the showing required under CCP section 437c(h), for their requested continuance of 120 days. Plaintiffs have not shown that the evidence necessary to defeat this motion may exist. Plaintiffs’ counsel states, in relevant part, that: “Plaintiffs respectfully submit that there are facts essential to justify opposition that exist but cannot be presented at this time and respectfully request a continuance of the pending Motions for Summary Judgment for 120 days while the Plaintiffs seek new counsel.” (ROA 194 [Rosenthal Decl. at ¶ 4].) But, as the court previously pointed out in its prior rulings, the supporting declaration must show that the opposing evidence *may* exist, *and* describe *in detail* the “specific facts that would show the existence of controverting evidence.” Plaintiffs have not shown that opposing evidence *may* exist, nor have they given the court any reason to believe they may exist—all they have shown, is that they are currently not able to present any opposing evidence, which is not sufficient.

In his declaration, Menon adds: “We have identified, through an expert-witness service, a board-certified neonatologist who is willing to review the complete medical records. Based on the treating

		physicians’ own contemporaneous notes and our communications with the expert service, we have reason to believe that, upon that review, a qualified neonatologist will opine that the post-delivery and neonatal care fell below the standard of care and caused or contributed to Krishna’s injuries. Krishna's treating pediatric neurologist has also expressed willingness to testify.” (Menon Decl. at ¶ 12.) A “willingness to review” the medical records is far from showing that Plaintiffs have retained an expert who is willing to provide a competing opinion. Even assuming for the sake of argument that Plaintiffs could find a competing expert opinion on these issues, it would be inappropriate to expand summary judgment beyond the limits of the material allegations in the complaint. Defendant shall give notice of the ruling.
10	Takahashi vs. American Honda Motor Co., Inc. 2024-01384148	Motion to Compel Deposition (Oral or Written) The Court denies Plaintiff Mariko Takashashi’s Motion for a second session of the Person Most Qualified deposition for Defendant American Honda Motor Co. Inc. and for further production of documents. The Court also notes a failure to adequately meet and confer as set forth in Miner’s declaration and per the Court’s Order. (Miner Decl., ¶¶26-33.) The Court also notes that California Rules of Court, rule 2.551(a) states plainly that a record must not be filed under seal without a court order, and the court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties (Rules of Court, Rule 2.551.) Moving to the merits, the Motion is denied. The person or persons designated by the entity must testify to the extent of any information known or reasonably available to them. (CCP § 2025.230.) Here, this Motion is made pursuant to Code of Civil Procedure §§ 2025.450 and 2031.310, et seq. according to the Notice of Motion. If, after the service of a deposition notice, a party, or an officer, director, managing agent, employee, or designated deponent of a party, fails to appear, testify, or produce documents, electronically

stored information, or tangible things for inspection without having served a valid objection under CCP §2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP §2025.450(a).) The motion must show good cause to justify the production of the document, electronically stored information, or tangible thing described in the deposition notice. The motion must be accompanied by a declaration showing a reasonable and good faith attempt to informally resolve each issue presented, or, when the deponent fails to attend the deposition and produce the requested documents, electronically stored information, or things, the motion must be accompanied by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. (CCP § 2025.450(b).)

Under Code of Civil Procedure section 2025.480(a), a party may seek a court order compelling an answer or production “if a deponent fails to answer any question or to produce any document...under the deponent’s control that is specified in the deposition notice...”

Plaintiff does not move under this statute and does not identify any question were counsel instructed not to answer. There are no

The deposition of Defendant’s PMQ, Delmy Rosales Garcia, was completed on November 25, 2025. (Miner Decl. ¶ 22.) Defendant says that there is no other person more qualified than the witness provided because the representative that spoke with Plaintiff in 2017, when Plaintiff contacted Honda, is no longer employed by Honda and nine years have passed since the purchase of this vehicle. (Ex. C, p. 45:22-25.)

Plaintiff takes issue with the fact that the witness did not know why a repurchase of the vehicle was not offered. But Defendant’s PMQ testified that in response to Plaintiff’s pre-litigation repurchase request, no analysis was performed as to whether to repurchase. (Tr. 45:19-21.) She further testified that she did not know why the case was closed without escalation: ‘Everything else would be speculation. Unfortunately, the inbound representative is no longer with American Honda.’ (Tr. 45:22-25.) Plaintiff acknowledges on reply that “...nothing happened — not because AHM lacked procedures, but because no one followed them.” (Reply, p. 3:24-25.) Plaintiff also takes issue with the witnesses testimony that she did not review service bulletins, there are no questions at issue that she was instructed not to answer.

A corporation is not required to produce any of its former officers, directors, managing agents, or employees in response to a deposition

		notice, even when such persons are far more knowledgeable about the litigation than anyone currently employed by the company. However, such individuals may be subpoenaed. (<i>Maldonado v. Superior Court</i> (2002) 94 Cal.App.4th 1390, 1398.) Further, the Court sustains objections to the areas of testimony at issue on the grounds that they are overbroad, violate the attorney-client privilege, and work product protections as worded. As to the document demands, Plaintiff seeks to compel the production of documents from Document Demand Nos. 10, 12-30, 34, 47, 58-60, 62-63. “To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” (<i>Digital Music News LLC v. Superior Court</i> (2014) 226 Cal.App.4th 216, 224.) Plaintiff has not shown good cause for the breadth of the requests. Further, the Court sustains Defendant’s objections. Thus, the Motion is denied. Plaintiff is ordered to serve notice.
10	Wilson vs. Dan	Motion for Continuance for Plaintiff to Lodge a Security Bond
	2025-01523063	Moot and off calendar.